

Calendar Line 1

Case Name: *Fortune Vieyra v. San Jose Day Nursery et al.*

Case No.: 23CV425445

I. BACKGROUND

This is an action by plaintiff Fortune Vieyra against defendants San Jose Day Nursery (“SJDN”) and Angela Gomez, an employee of SJDN (collectively, “Defendants”). As the court has previously noted, this action is directly related to an ongoing child custody case between Vieyra and Elizabeth Jorgensen (Santa Clara County Case No. 21CP000545) in which Vieyra and Jorgensen have a fundamental disagreement over custody of their child, E.V., as well as over E.V.’s gender identity.¹

According to the operative third amended complaint (“TAC”), E.V. attended SJDN’s daycare for at least a year, during which time Defendants allegedly sided with Jorgensen and against Vieyra in affirming a male gender identity upon E.V., contrary to Vieyra’s express wishes and instructions. (TAC, ¶¶ 2-6.) From October 4, 2022 to November 2, 2022, Vieyra exchanges a series of emails with SJDN and Gomez about his wishes, but he was allegedly excluded from critical conversations. According to the TAC, Defendants held secret meetings with Jorgensen and favored communications with her, neglecting Vieyra’s parental rights and causing harm to both him and E.V. (*Ibid.*)

Vieyra filed the child custody case in family court on September 8, 2021. Over two years later, on November 7, 2023, he filed the original complaint in this case, stating causes of action for: violation of parental rights; intentional infliction of emotional distress; civil conspiracy; negligence; fraudulent concealment; discrimination based on race in violation of the California Unruh Civil Rights Act; child abuse; and discrimination based on race and gender. On December 12, 2023, he filed a first amended complaint (“FAC”), with causes of action for: violation of parental rights; intentional infliction of emotional distress; civil conspiracy; common law negligence; fraudulent concealment; race discrimination; child abuse and discrimination; and breach of contractual obligations.

On May 14, 2024, this court heard a demurrer to and motion to strike the FAC filed by Defendants, as well as a motion for protective order filed by Vieyra. The court sustained the demurrer on the grounds of uncertainty and failure to state sufficient facts; denied the motion to strike as moot given the ruling on the demurrer; and denied Vieyra’s motion for protective order as premature at best.² The order granted Vieyra 20 days’ leave to amend. The order also contained five specific admonishments to Vieyra, including that new claims or parties could not be added and that any amended pleading would have to comply with rule 2.112 of the California Rules of Court. (See May 14, 2024 Order, pp. 10:13-11:6.)

On May 24, 2024 Vieyra filed his second amended complaint (“SAC”). The SAC stated seven properly labeled causes of action, in accordance with rule 2.112: (1) Negligent

¹ As explained in prior orders, the court refers to the child as “E.V.” based on the child’s birth name. The court takes no position regarding the correct name for the child, as that is one of the fundamental disputes between the parents in family court.

² The court takes judicial notice of the May 14, 2024 order on its own motion, under Evidence Code section 452, subdivision (d).

Supervision and Hiring; (2) Intentional Infliction of Emotional Distress; (3) Civil Conspiracy; (4) Fraudulent Concealment; (5) Race and Gender Discrimination; (6) “Child Psychological Abuse”; and (7) Breach of Contractual Obligations. Nevertheless, despite the specific admonitions in the May 14, 2024 order, the SAC also improperly attempted to add E.V. as a plaintiff and was replete with references to causes of action, such as declaratory judgment and unfair business practices, that Vieyra was not granted leave to add.

On September 5, 2024, the court heard a demurrer to the SAC from Defendants, as well as a motion to compel, a motion for leave to amend, and a motion for a protective order filed by Vieyra. The court overruled the demurrer to the entire SAC on uncertainty grounds, sustained the demurrer with 20 days’ leave to amend under Code of Civil Procedure section 430.10, subdivision (e) (failure to state sufficient facts), as to the first cause of action (now pled as negligent supervision and hiring rather than general negligence), the third cause of action, the fourth cause of action, the fifth cause of action (as to SJDN only), and the seventh cause of action. The court granted leave to amend despite expressing significant doubts that an amendment could cure the defects identified in these causes of action. The court sustained the demurrer to the second and sixth causes of action on the ground that they failed to state sufficient facts, *without* leave to amend. Finally, the court sustained the demurrer to the fifth cause of action without leave to amend as to Gomez. The September 5, 2024 order once again made it clear that the court was not granting leave to add new causes of action or parties.

In its September 5, 2024 order, the court also denied Vieyra’s motion to compel, denied the motion for leave to file a SAC as moot in light of the court’s May 14, 2024 order, and denied the motion for protective order.³ The court struck numerous unauthorized amendments from the SAC on its own motion, under Code of Civil Procedure section 436, subdivisions (a) and (b). (See September 5, 2024 Order, pp. 14:15-15:18.)

Vieyra filed the operative TAC on September 23, 2024. It states five causes of action: (1) Negligent Supervision and Hiring; (2) Civil Conspiracy; (3) Fraudulent Concealment; (4) Race and Gender Discrimination (against Gomez only); and (5) Breach of Contractual Obligations.

As noted in the court’s prior orders, Vieyra is self-represented. Self-represented parties are entitled to the same consideration as other litigants or attorneys, but no greater. (*County of Orange v. Smith* (2005) 132 Cal.App.4th 1434, 1444.) Self-represented litigants “are held to the same standards as attorneys” and must comply with the Code of Civil Procedure and Rules of Court. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985 [“A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation.”].)

Currently before the court is a demurrer to the TAC, filed by Defendants on October 18, 2024. Vieyra filed an opposition shortly thereafter, on October 21, 2024.

³ The court takes judicial notice of its September 5, 2024 order under Evidence Code section 452, subdivision (d).

II. DEMURRER TO THE TAC

A. General Standards

The court, in ruling on a demurrer, treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.) Facts appearing in exhibits attached to the complaint (part of the “face of the pleading”) are given precedence over inconsistent allegations in the complaint. (See *Barnett v. Fireman’s Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505 [“[T]o the extent the factual allegations conflict with the content of the exhibits to the complaint, we rely on and accept as true the contents of the exhibits and treat as surplusage the pleader’s allegations as to the legal effect of the exhibits.”].)

Where a demurrer is to an amended complaint, the court “may consider the factual allegations of prior complaints, which a plaintiff may not discard or avoid by making contradictory averments, in a superseding, amended pleading.” (*Berg & Berg Enterprises, LLC v. Boyle* (2009) 178 Cal.App.4th 1020, 1034, internal quotations omitted; see also *Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 343 [noting “well-established precedent” allowing “courts to consider omitted and inconsistent allegations from earlier pleadings when ruling on a demurrer.”]; *Doe v. United States Youth Soccer Assoc.* (2017) 8 Cal.App.5th 1118, 1122 [citing *Berg & Berg*].)

The court considers only the pleading under attack, any attached exhibits, and any facts or documents of which the court may take judicial notice. The court cannot consider extrinsic evidence in ruling on a demurrer.

Code of Civil Procedure section 430.60 states that “[a] demurrer shall distinctly specify the grounds upon which any of the objections to the complaint, cross-complaint, or answer are taken. Unless it does so, it may be disregarded.” The rules of court also require that the demurrer itself (distinct from a supporting memorandum) specify the target of any objection and the grounds. (See Cal. Rules of Court, rules 3.1103(c), 3.1112(a), 3.1320(a) [“Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses.”]; see also 5 Witkin, *Cal. Procedure* (5th ed., 2019) Pleading, § 953 [“Each ground of demurrer must be in a separate paragraph and must state whether the demurrer applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses.”].)

Finally, “points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before.” (*Proctor v. Vishay Intertechnology, Inc.* (2013) 213 Cal.App.4th 1258, 1273; see also *REO Broadcasting Consultants v. Martin* (1999) 69 Cal.App.4th 489, 500 [“This court will not consider points raised for the first time in a reply brief for the obvious reason that opposing counsel has not been given the opportunity to address those points.”].)

B. Threshold Issues

Just as with both the May 14, 2024 and September 5, 2024 orders, the court must address some preliminary issues.

First, Defendants have not complied (again) with the meet-and-confer requirement set forth in Code of Civil Procedure section 430.41, subdivision (a). The declaration of defendants' counsel, Nicole Meredith, does not mention any meet-and-confer efforts prior to the filing of this demurrer. The Meredith declaration is otherwise extrinsic evidence, and the court has not considered it or any of the attached exhibits in ruling on this demurrer.

Even if counsel believed that meeting and conferring would be futile, that does not excuse the lack of a good-faith effort. Nevertheless, as Code of Civil Procedure section 430.41, subdivision (a)(4), provides that insufficient meet and confer efforts "shall not" be grounds for overruling a demurrer, the court will consider the merits of the demurrer.

Second, as noted in the September 5, 2024 order, under Code of Civil Procedure section 436, subdivisions (a) and (b), the court may "at any time in its discretion, and upon terms it deems proper: [¶] (a) Strike out any irrelevant, false or improper matter inserted in any pleading. [¶] (b) Strike all or any part of any pleading not drawn in conformity with the laws of this state, a court rule, or an order of the court." Portions of a pleading that violate a court order are both "improper" and not "filed in conformity" with a court order.

Both the May 14, 2024 and September 5, 2024 orders stated that leave was not being granted to add new claims or parties. The September 5, 2024 order also struck, without leave to amend, several portions of the SAC that alleged violations of various code sections that were impermissibly added. In doing so, the order expressly stated that leave was not being granted to add allegations of additional statutory or regulatory violations. (See Sept. 5, 2024 Order, p. 18:19-20 and p. 22:4-5.) Despite this clear language, as Defendants point out, the TAC adds numerous allegations of statutory or regulatory violations that fall outside the scope of the court's leave to amend.

The court therefore strikes the following portions of the TAC on its own motion:

- Any allegations that Defendants violated various sections of the Health and Safety Code, the California Code of Regulations, the Penal Code, or the Welfare and Institutions Code, including paragraphs 60, 68, 81, 82, 84, 85, 87, 89, 125, 126, 155, and 159 of the TAC.⁴
- Any allegations that Defendants violated Civil Code section 1708.5, including paragraph 121 of the TAC, or Civil Code section 1798.5, including paragraph 163 of the TAC.⁵

⁴ Vieyra has only alleged, and been granted leave to amend, a cause of action for common law civil conspiracy. The court has never granted leave to add a cause of action for criminal conspiracy.

⁵ Vieyra has never alleged and never been granted leave to add a cause of action for invasion of privacy. While Vieyra appears to believe that Civil Code section 1708.5 relates to an invasion of privacy, that statute describes liability for sexual battery.

These allegations are stricken without leave to amend.

C. The Basis for Defendants' Demurrer to the TAC

Defendants assert that each cause of action in the TAC fails to state sufficient facts. (Code Civ. Proc., § 430.10, subd. (e).) In addition, Defendants assert that the fifth cause of action for breach of contract fails to allege whether the alleged contract is written, oral, or implied by conduct. (Code Civ. Proc., § 430.10, subd. (g).) (See October 18, 2024 Notice of Demurrer and Demurrer at pp. 1:24-2:3.)

As a general matter, the court notes that the SAC is replete with factual and legal *conclusions* that the court is not required to accept as true on demurrer.

D. Discussion

1. First Cause of Action: Negligent Supervision and Hiring

The court SUSTAINS the demurrer to the first cause of action on the ground that it fails to state sufficient facts.

“As a general rule, one owes no duty to control the conduct of another . . .’ More specifically, a supervisor is not liable to third parties for the acts of his or her subordinates.” (*Fiol v. Doellstedt* (1996) 50 Cal.App.4th 1318, 1326, internal citations omitted [discussing aiding & abetting liability].) Negligent supervision is simply a specific variety of common law negligence.

Negligent supervision is usually framed as an issue of whether a business or organization adequately supervised a specific adult employee or agent who intentionally or negligently injured someone else. Typically, in order for there to be liability for negligent supervision, the defendant must be the employer of the individual alleged to have been negligently supervised. (See, e.g., CACI No. 426; *Jackson v. AEG Live, LLC* (2015) 233 Cal.App.4th 1156, 1187-1188.) “An employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee. Liability is based upon the facts that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes. To establish negligent supervision, a plaintiff must show that a person in a supervisory position over the actor had *prior* knowledge of the actor's propensity to do the bad act.” (*Alexander v. Community Hospital of Long Beach* (2020) 46 Cal.App.5th 238, 264, internal citations omitted, emphasis in original.)

The first cause of action alleges that “Defendants” negligently supervised or hired (unidentified) employees by “failing to properly train and supervise their staff” and failing “to maintain open communication with Vieyra, disregarding his role as joint custodial parent.” (See TAC, ¶¶ 182-186.) These bare and conclusory allegations continue to fail to state sufficient facts to support a cause of action against SJDN or Gomez, because they fail to identify any specific employees who injured Vieyra and whose “propensity” to injure someone intentionally or negligently in the way Vieyra was injured was something of which Defendants had prior knowledge. The TAC also continues to fail to state sufficient facts to support the cause of action against Gomez, as the TAC admits that she is a “full-time employee” of SJDN and not an employer herself. (*Id.* at ¶ 13.)

Vieyra’s argument in his opposition that the allegations are sufficient because some SJDN employees (“Rhysie Montano” and “Ms. Kim”) are identified in the TAC is unpersuasive. (See TAC, ¶¶ 22, 26, 56, 136, 138, 140, and 143.) The TAC cannot reasonably be interpreted as adequately alleging negligent hiring and supervision of these employees.⁶ Vieyra’s argument that sufficient facts are stated to support the cause of action as alleged against Gomez because she “may” have supervisory responsibilities or authority over hiring is also unpersuasive. (See Opposition at p. 6:3-27.)⁷

As the court has previously noted, a plaintiff bears the burden of demonstrating that an amendment would cure the defect identified on demurrer. (See *Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081; *Shaeffer v. Califa Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145 [“The onus is on the plaintiff to articulate the ‘specifi[c] ways’ to cure the identified defect, and absent such an articulation, a trial or appellate court may grant leave to amend ‘only if a potentially effective amendment [is] both apparent and consistent with the plaintiff’s theory of the case. [Citation.]’”].)

Vieyra does not say anything about further leave to amend. As no effective amendment is apparent to the court, further leave to amend the first cause of action is DENIED.

2. Second Cause of Action: Civil Conspiracy

The court SUSTAINS Defendants’ demurrer to the second cause of action on the ground that it fails to state sufficient facts.

“Conspiracy is not an independent tort: it cannot create a duty or abrogate an immunity. It allows tort recovery only against a party who already owes the duty and is not immune from liability based on applicable substantive tort law principles.” (*Applied Equipment Corp. v. Litton Saudi Arabia, Ltd.* (1994) 7 Cal.4th 503, 514.) “As we read *Applied Equipment* and the antecedent case authorities on which it builds, in California a civil conspiracy to commit tortious acts can, as a matter of law, only be formed by parties who are already under a duty to the plaintiff, the breach of which will support a cause of action against them—individually and not as conspirators—in tort. Restated, in cases where the plaintiff alleges the existence of a civil conspiracy among the defendants to commit tortious acts, the source of substantive liability *cannot* arise out of participation in the conspiracy alone.” (*Chavers v. Gatke Corp.* (2003) 107 Cal.App.4th 606, 614, emphasis in original, internal citations omitted.)

Liability for civil conspiracy requires three elements: (1) formation of the conspiracy (an agreement to commit wrongful acts); (2) operation of the conspiracy (commission of the wrongful acts); and (3) damage resulting from operation of the conspiracy. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47; see also CACI, No. 3600.) In addition, “[Plaintiffs] must show that each member of the conspiracy acted in concert and came to a mutual understanding to accomplish a common and unlawful plan, and that one or more of

⁶ In these paragraphs, Vieyra alleges that Rhysie Montano sent emails to others without telling him, and allowed someone not authorized by him (but supposedly authorized by Jorgensen) to pick up E.V. from SJDN. None of this alleges any facts about Montano’s “propensity” to cause injury or any prior knowledge of such propensity by SJDN.

⁷ Vieyra’s opposition, once again labeled a “declaration,” once again exceeds the page limits set forth in rule 3.1113(d) of the California Rules of Court.

them committed an overt act to further it. It is not enough that the conspiring officers knew of an intended wrongful act, they had to agree—expressly or tacitly—to achieve it. Unless there is such a meeting of the minds, ‘the independent acts of two or more wrongdoers do not amount to a conspiracy.’” (*Choate v. County of Orange* (2000) 86 Cal.App.4th 312, 333 [citation omitted].)

The second cause of action alleges that SJDN and Gomez “agreed and acted in concert to exclude Plaintiff from important communications and decisions” regarding E.V., “deliberately withheld information” about E.V.’s well-being, and failed to inform Vieyra about “significant incidents.” (See TAC, ¶¶ 187-92, generally.)

These allegations are essentially unchanged from the SAC and continue to fail to state sufficient facts to support a civil conspiracy claim against SJDN or Gomez. The second cause of action does not identify any underlying tort as the subject of the conspiracy, and neither the stricken unauthorized amendments nor the now-eliminated first cause of action can serve as the underlying tort.

Vieyra’s argument in the opposition that the second cause of action alleges both fraudulent concealment and negligent supervision and hiring as the underlying torts is unpersuasive, as a thorough review of the TAC reveals that it does not identify *any* underlying tort. Even if it did, as discussed above and below, the court has concluded that both the negligent supervision and hiring and fraudulent concealment causes of action fail to state sufficient facts.

As no effective amendment is apparent to the court, further leave to amend the second cause of action is DENIED.

3. Third Cause of Action: Fraudulent Concealment

The court SUSTAINS Defendants’ demurrer to the third cause of action on the ground that it fails to state sufficient facts.

As noted in the court’s September 5, 2024 order, “[t]he elements of fraudulent concealment are: (1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if the plaintiff had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage.” (*Burch v. CertainTeed Corp.* (2019) 34 Cal.App.5th 341, 348, citing *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 310-311.) “With respect to concealment, there are four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. The latter three circumstances presuppose the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise. This relationship has been described as a transaction, such as that between seller and buyer, employer and prospective

employee, doctor and patient, or parties entering into any kind of contractual arrangement.” (*Id.* at pp. 349-350, internal quotations and citations omitted.)

As a general rule, each element in a fraud cause of action must be pleaded with specificity. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645; *Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 519.) The specific pleading requirement can be significantly relaxed in the case of fraud by concealment or omission because, as one court has explained, “[h]ow does one show ‘how’ and ‘by what means’ something didn’t happen, or ‘when’ it never happened, or ‘where’ it never happened?” (*Alfaro v. Community Housing Imp. System & Planning Ass’n, Inc.* (2009) 171 Cal.App.4th 1356, 1384.)

In the TAC, this cause of action is also largely unchanged from what was alleged in the SAC. Vieyra alleges that “Defendants” withheld unidentified “crucial information about E.V.’s care, including instances of misgendering,” and “concealed their non-compliance with parental directives,” and that as a result, Vieyra suffered “emotional and psychological distress.” (TAC, ¶¶ 193-198.) None of the elements of fraudulent concealment are adequately alleged here. The absence of any allegations regarding *intent to induce reliance* or *justifiable reliance by Vieyra* is particularly glaring. Vieyra’s argument in opposition that the exhibits attached to the TAC (specifically, Exhibits F-3, G-1, I-1, and I-2) sufficiently establish the elements of fraudulent concealment is unpersuasive. At best, these exhibits merely show that SJDN sometimes communicated with just one parent rather than with both parents. .

The opposition does not request further leave to amend, and the court does not discern any potentially effective amendment. Accordingly, the court sustains the demurrer without leave to amend.

4. Fourth Cause of Action: Race and Gender Discrimination (Unruh Act)

The court SUSTAINS Defendants’ demurrer to the fourth cause of action on the ground that it fails to state sufficient facts, without further leave to amend. This cause of action is now alleged against Gomez only. (See TAC, ¶¶ 13, 199-211.) But the court’s September 5, 2024 order expressly sustained the demurrer to the race and gender discrimination cause of action, as to Gomez, *without* leave to amend, because Gomez cannot be considered a business establishment under the Unruh Act. (Order, p. 25:4-6.)

Vieyra’s opposition acknowledges this but asks the court to dismiss the cause of action without prejudice. (See Opposition, p. 15:4-7.) The court declines to make this change to its prior order.

5. Fifth Cause of Action: Breach of Contractual Obligations

The court SUSTAINS Defendants’ demurrer to the fifth cause of action on both grounds asserted by Defendants: it fails to state sufficient facts, and it does not indicate whether the alleged contract is written, oral, or implied by conduct.

“To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff’s performance of the contract or excuse for nonperformance, (3) the defendant’s breach, and (4) the resulting damage to the plaintiff.” (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; see also CACI, No. 303.) A non-party to a contract cannot be

sued for breach of that contract. (See *Gold v. Gibbons* (1960) 178 Cal.App.2d 517, 519 [“Breach of contract cannot be made the basis of an action for damages against defendants who did not execute it and who did nothing to assume its obligations.”]; see also *Clemens v. American Warranty Corp.* (1987) 193 Cal.App.3d 444, 452 [“Under California law, only a signatory to a contract may be liable for any breach.”].)

“It is . . . solely a judicial function to interpret a written instrument unless the interpretation turns on the credibility of extrinsic evidence.” (*Consolidated Theatres, Inc. v. Theatrical Stage Employees Union* (1968) 69 Cal.2d 713, 724; see also *Sierra Vista Regional Medical Center v. Bonta* (2003) 107 Cal.App.4th 237, 245 [“The interpretation of a contract is a question of law unless the interpretation turns on the credibility of extrinsic evidence.”])

This cause of action is again alleged against “Defendants.” Despite prior leave to amend, the TAC continues merely to allege violations of “contractual obligations” in “agreements,” without identifying how any specific contract or contracts were formed or identifying whether the “agreements” are written, oral, or implied by conduct. (TAC, ¶¶ 212-226.) While the TAC, like the SAC, is replete with references to the SJDN Parent Handbook, that document is clearly not a signed, written contract between Vieyra and any other party, especially not Gomez. (See *id.* at ¶¶ 164-170.)⁸ In addition, as noted in the court’s prior order, the “Handbook” appears to consist of a collection of different materials, many of which are plainly not intended to constitute a binding agreement. The opposition’s contention that different paragraphs of the Handbook together establish an enforceable contract between Vieyra and both SJDN and Gomez is not persuasive. (See Opposition, pp. 15:10-19:22.) As noted above, contract interpretation is a question of law for the court, even on demurrer, and the Handbook cannot reasonably be construed as an enforceable written contract in the manner that the TAC appears to allege.

Because Vieyra has been afforded multiple opportunities to cure the deficiencies in the breach of contract cause of action and has been unable to do so, and because no potentially effective amendment is apparent to the court, the court denies further leave to amend the fifth cause of action.

In sum, the court SUSTAINS the demurrer to each cause of action in the TAC without leave to amend.

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⁸ While the Handbook is sometimes cited in the TAC as Exhibit H-1, it is actually Exhibit I-1 to the TAC.

Calendar Line 2

Case Name: *Pamela Wingerden v. Nestldown Therapeutic Riding Center*

Case No.: 23CV422178

Plaintiff Pamela Wingerden moves to quash several subpoenas issued by defendant Nestldown Therapeutic Riding Center (“Nestldown”) to her medical providers. In the alternative, she requests a protective order. Wingerden argues that the subpoenas are overbroad, because they are not limited to the specific body parts that she identified as having been injured in a September 8, 2021 accident at a horse ranch owned by Nestldown, where she used to work. In addition, she argues that the subpoenas are overbroad as to time, seeking “decades of medical records.” (Memorandum, p. 7:15-16.)

The court denies the motion to the extent that it seeks to limit the subpoenas to specific body parts. In her response to Form Interrogatory No. 6.2, Wingerden identified the following injuries: “I suffered . . . L3/L4 transverse process fractures, closed head injury, post-concussion syndrome, benign paroxysmal positional vertigo (BPPV), cervical pain, thoracic pain, headaches, right shoulder pain and left hip pain. I had a hematoma on my inner right thigh. My cognitive functioning and memory recall.” (Declaration of Paulo S. Kline Simon, Exhibit 1, p. 7.) In other words, she identified injuries to her head, shoulder, hip, chest, thigh, and vertebrae/spine. Having put all of these disparate injuries at issue in the case, it is unreasonable for Wingerden to claim that her right of privacy precludes discovery into medical records that could potentially be related to one of these claimed injuries. The present circumstances are nothing like the circumstances at issue in *Hallendorf v. Superior Court* (1978) 85 Cal.App.3d 553, a case upon which she relies, where the plaintiff claimed injuries only to his arm and shoulder, and then the defendant tried to obtain discovery about plaintiff’s entire medical history, including records that were expressly unrelated to the accident at issue (e.g., plaintiff’s history of hypertension). Here, although the court would not go so far as Nestldown to say that Wingerden’s injuries were to her “entire body,” the court finds that her injuries and symptoms (e.g., loss of “cognitive functioning and memory”) are so wide-ranging that the scope of the subpoenas cannot reasonably be limited without further explanation here from Wingerden about her claimed privacy interest—an explanation that she fails to provide.

As for the timeframe of the subpoenas, however, the court agrees with Wingerden that an unlimited duration—especially if it goes back “decades”—is overbroad. Nestldown argues that Wingerden’s medical history before the accident is necessary to determine the extent to which pre-existing medical issues, as opposed to the September 8, 2021 accident itself, may be the cause of her current symptoms. While this proposition may be reasonable as a general concept, it still does not counsel in favor of discovery of an entire medical history. Accordingly, the court finds that it would be reasonable to obtain medical records that may exist *up to two years before* the date of the accident. Anything more than that would require a heightened showing from Nestldown at a later time, based on the information initially obtained either in response to these subpoenas or in the course of discovery in this case.

In short, the court GRANTS the motion IN PART, limiting the timeframe of any document production from September 2019 to the present, and DENIES the motion IN PART (in all other respects).

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Calendar Lines 3-4

Case Name: *Debra Ryan et al. v. AAA et al.*

Case No.: 23CV427933

The present motions were originally calendared for a hearing on January 7, 2025. On the eve of that date, after the court had already posted a tentative ruling on these motions, the parties submitted a stipulation to continue the hearing, indicating that they were continuing to meet and confer in an effort to “narrow” or “eliminate” their disputes. The court therefore rescheduled the hearing to February 27, 2025, noting that if plaintiffs ultimately elected to take the motions off calendar, “they should notify the court at least three court days before the rescheduled hearing date.” (January 6, 2025 Order, p. 3.) The court has not received any update from the parties, as of February 25, 2025. Accordingly, the court hereby adopts in full its previous tentative ruling, which stated the following:

Plaintiffs Debra and Richard Ryan (“Plaintiffs”) have filed two motions to compel further discovery responses from defendant CSAA Insurance Exchange (“CSAA”): the first pertains to requests for production of documents; the second pertains to special interrogatories. After Plaintiffs filed this motion, CSAA supplemented its responses to both sets of requests, but neither side has addressed these supplemental responses in their separate statements under rule 3.1345 of the California Rules of Court. On this basis alone, the motions must be denied.

The separate statement is not a mere technicality—its purpose is to “provide[] all the information necessary to understand each discovery request and all the responses to it that are at issue.” (Cal. Rules of Court, rule 3.1345(c).) Rule 3.1345(c) goes on to emphasize that: “[t]he separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response.” If Plaintiffs wished to have the court consider the propriety of CSAA’s supplemental discovery responses, it was incumbent on them to submit a supplemental separate statement that provides a “full and complete” record of the disputed issues. Plaintiffs’ filings fail this basic requirement.⁹

If this motion were focused on just a few requests, then it might be possible for the court to overlook this problem, but instead, plaintiffs have filed scattershot motions that take issue with the responses to all 20 of its document requests and 10 out of 11 of its special interrogatories. This is not a proper use of motion practice.

Finally, even if the court were to consider the motions on the merits, the court has reviewed the supplemental discovery responses (attached to the two opposing declarations of CSAA’s counsel) and finds that they are generally code compliant:

⁹ In reply, Plaintiffs’ counsel has submitted a declaration that purports to attach updated information (see Supplemental Declaration of Heather Gibson, dated December 30, 2024), but no documents are actually attached to this filing. None of the cited exhibits are before the court.

Requests for production: The court finds that CSAA’s supplemental responses to the requests for production cure any material deficiencies that existed in the original responses. Plaintiffs take issue with the “Preliminary Statement” contained in CSAA’s original responses, as well as “all previously stated objections,” arguing that this statement and all of these objections must be “stricken.” This misunderstands the purpose of a motion to compel further responses, as well as the purpose of discovery generally. A motion to compel further responses is not a motion to strike. The court’s sole concern on a motion to compel *further responses* is whether a responding party has provided adequate information in response to each discovery request, or whether it has withheld material information on the basis of an improper objection. In this case, Plaintiffs fail to identify any information that may have been withheld on the basis of the “Preliminary Statement” or “previously stated objections.”

Even for those responses that use open-ended language such as “included” or “including,” or that refer back to the insurance “claim file,” Plaintiffs fail to identify any information that may actually be missing from the responses, much less any information that may be missing from CSAA’s document production.

As for Requests Nos. 18-20, the court finds Plaintiffs’ contention that CSAA must somehow have possession, custody, or control of certain individuals’ CVs or resumes to be speculative. There are other proper ways to obtain this discovery.

Finally, the court observes that many of the requests for production—particularly those that are not restricted in scope to the insurance claim at issue (e.g., No. 1: “All written emails, texts, or communication relating to you and the Greenspan Company.”)—to be exceedingly overbroad.

Special Interrogatories: The court likewise finds that while CSAA’s original responses to Interrogatories Nos. 2-11 were lacking and insufficiently responsive, the supplemental responses cure these deficiencies by identifying the appropriate individuals. Taken together, the original and supplemental responses are code-compliant. The court rejects Plaintiffs’ argument that the court “must strike” the “Preliminary Statement and “previously stated objections,” for the same reason noted above with respect to the document requests.

Privilege log: Finally, the court has reviewed CSAA’s privilege log and finds that it appears to contain the necessary information to establish the existence of an attorney-client privilege in the relevant communications, although the court does not understand why the “Author” on six entries is listed as “System.” To the extent that there is any ambiguity in what this means (these appear to be redactions, and the court does not have copies of the documents to view these redactions in context), then the privilege log may need to be supplemented to address this. The court leaves this issue to the parties to sort out.

In summary, the court DENIES the motions to compel, with the possible exception of the “Author” field on the privilege log. The court also DENIES Plaintiffs’ request for monetary sanctions.

IT IS SO ORDERED.

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Calendar Line 6**Case Name:** *Tolentino R. Aspiras et al. v. Roger Delos Reyes et al.***Case No.:** 23CV423644

This is a partition action in which plaintiffs and defendants each hold a 50% interest in property (29 Jason Drive, Milpitas, California) that has now been sold, and as to which the remaining proceeds amount to \$1,084,437.62. Plaintiffs have filed a motion seeking a distribution of \$711,148.16, rather than 50% of the remaining total, based on expenditures that they claim were made for the common benefit of the parties. The court finds that this motion is wholly without merit and denies it.

First, plaintiffs argue that they contributed \$517,387.37 in mortgage payments for the property, over a period of more than 30 years (April 1993 to October 2023), as well as \$23,439.32 for “renovations, repairs, and maintenance,” \$2,586.52 for home insurance, \$27,036.92 for property taxes, and \$32,666.80 for a loan payment. What they fail to disclose, anywhere in their opening brief, is that they were the exclusive occupants of the property during this period. As defendants point out in their opposition brief, “Plaintiffs’ payments were made in exchange for exclusive use of the Property, not as advances on ownership.” (Opposition, p. 6:5-6.) As a consequence, there is zero basis for the court to find that any of these payments were for “the common benefit.” These payments were the equivalent of rent over this thirty-and-a-half-year period, and so the court finds that they were solely for the benefit of plaintiffs.

Second, plaintiffs argue that they are entitled to attorney’s fees of \$25,050.23 in connection with this partition action, but the court finds that these expenditures were also not for the common benefit. As defendants again point out, they were not opposed to a partition and sale of the property; instead, the parties had disagreements over the choice of broker and the distribution of proceeds between them. (Opposition, pp. 3:12-4:22; 7:22-9:5.) The court takes judicial notice of the fact that the contested filings in this case consist of: (1) plaintiffs’ demurrer to defendants’ answer, which the court found to be meritless on January 16, 2024; (2) plaintiffs’ ex parte application to confirm the sale, which the court found to be “extremely confusing” on July 16, 2024 and then rendered moot by the parties’ stipulation in August 2024; and (3) the present motion, which the court finds to be equally meritless. None of this can reasonably be deemed to have been advanced by plaintiffs or their counsel for the common benefit.

The motion is DENIED. The court orders that each side receive a 50% share of the remaining proceeds.

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Calendar Line 7

Case Name: *Karen Castro v. Quanta Manufacturing Incorporation et al.*

Case No.: 23CV426909

In this wrongful termination and discrimination case, defendant TPS Solutions, Inc. (“TPS”) moves to compel arbitration against its former employee, plaintiff Karen Castro, based on an arbitration agreement that Castro purportedly e-signed in both Spanish and English. Castro disputes that she ever signed such an agreement. In addition, she argues that the agreement is unenforceable because it is procedurally and substantively unconscionable. Having reviewed the evidence submitted by the parties, the court concludes that TPS has failed to show the existence of a valid arbitration agreement and therefore denies the motion.

1. Background Facts

Castro was hired by TPS to work as a janitor from November 2021 to July 2023.¹⁰ She says that she was born and raised in Honduras, where she received only a sixth-grade education. She cannot read English and has a limited ability to speak English. She says she has never owned a computer (or laptop or tablet) and does not know how to use a computer. (Declaration of Karen Castro, ¶¶ 2-9.)¹¹

TPS contends that Castro electronically signed a Spanish-language arbitration agreement on March 2, 2023, as well as an English-language arbitration agreement on July 5, 2023—the latter while she was on pregnancy leave and before she was disallowed from returning. It appears that the time stamps on both of these signatures are very late in the evening: 10:48 p.m. on March 2 and 11:02 p.m. on July 5. According to TPS’s President, Michael Avidano, signing these agreements was a part of TPS’s “online onboarding” process in 2023. (Declaration of Michael Avidano, ¶¶ 4-5.) Employees were directed to enter their names and social security numbers on the “Tempworks” system, and then to create a unique username and password, after which they would be presented with a series of documents to review and sign. (*Id.* at ¶¶ 6-10.) Avidano states: “The Tempworks system shows that an employee using the Karen Castro profile[] clicked the check box on the Arbitration Agreement to place Karen Castro’s signature the [sic] Spanish Language Arbitration Agreement on March 02, 2023. Only an individual using Ms. Castro’s unique login and password could have checked the check box on the Arbitration Agreement.” (*Id.* at ¶ 11.)

2. Legal Standard

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden-shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); see also *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement’s existence. If the opposing party does so, then the burden shifts back to the proponent of

¹⁰ Castro claims that she worked until May 4, 2023, at which point she took a leave of absence for her pregnancy. When she tried to return in July 2023, she was not allowed to resume her job.

¹¹ Castro’s declaration is in both English and Spanish, accompanied by a certification of the translator.

arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere*, 87 Cal.App.5th at p. 755.)

3. Discussion

The court finds that TPS has met its initial burden of showing the existence of an arbitration agreement. Attached to the motion’s supporting declarations are both Spanish and English versions of an arbitration agreement, showing what TPS claims to be e-signatures of Castro.

The court also finds that Castro has met her burden of shifting the burden back to TPS. First, she flatly denies having e-signed either the Spanish or English versions of the arbitration agreement. This, on its own, is enough to create a factual dispute. (See *Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 52 (*Garcia*); see also *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.)

Second, and even more critically, she raises serious questions about the credibility of TPS’s evidence. Avidano’s declaration does not state that he witnessed Castro’s signing in either March or July 2023, and so his declaration does not establish that the purported e-signatures were “the act of the person.” (*Garcia, supra*, 102 Cal.App.5th at p. 53.) In addition, although TPS argues *in its brief* that it provided a laptop to Castro on each occasion to log into the “Tempworks” system to complete the electronic forms, TPS has failed to submit any admissible evidence—*e.g., a declaration of a competent witness*—either that it provided a laptop to Castro on each occasion, *or even that it was standard practice for it to do so* with employees who did not have their own computer. Attorney arguments contained in a brief are not evidence.

Avidano’s declaration also fails to provide a sufficiently credible explanation as to why Castro was asked to e-sign these “onboarding” documents more than 15 months after she had already started working. Avidano states that TPS underwent “an auditing of its files” in July 2023, which necessitated sending electronic forms to employees who had already onboarded, but this doesn’t explain why Castro was purportedly asked to e-sign a Spanish version of the agreement *four months earlier* than this alleged audit, in March 2023. Indeed, this essentially serves as an admission by TPS that Castro did not sign an arbitration agreement when she began her employment, and it was only more than a year into her job that she was purportedly asked to sign such an agreement.

This is corroborated by the documents that Castro submits with her opposition. These are forms that Castro claims that she signed—in hard copy—when she actually began her employment with TPS. They include various agreements—including an orientation form, a medical form, a sick leave form, a sexual harassment policy, and a confidentiality agreement—but no arbitration agreement. They are all dated 2021. (Declaration of Parviz Darabi, Exhibit 1.)¹²

Finally, Castro argues that it does not make sense that she would supposedly have gone into TPS’s offices late at night (10:48 p.m. and 11:02 p.m.) to log into a computer and e-sign

¹² The court finds it odd that these exhibits are attached to the declaration of counsel, rather than to the declaration of Castro. They should have been attached to the latter declaration.

various forms, when her regular work hours were much earlier in the day, from 7:30 a.m. to the late afternoon.¹³ She also notes that it does not make sense that she would go in late at night on July 5, 2023, while she was still on pregnancy leave, to sign the English-language version of the arbitration agreement. She argues that these circumstances are suspicious, and the court agrees. Indeed, the court does not understand why TPS would have asked Castro to come into their offices, while on leave, late at night, to sign an English-language version of the agreement when she had already allegedly signed a Spanish-language version. What does that even accomplish? It is especially puzzling given Castro's uncontested statement in her declaration that she cannot read English.

In reply, TPS fails to rebut any of these points. Instead, TPS falls back on the original Avidano declaration (Reply, pp. 5:25-6:8), which raises more questions than it answers.

Given the foregoing, the court finds that TPS has failed to show by a preponderance of the evidence the existence of a valid arbitration agreement.

Neither side has requested an evidentiary hearing, and the court finds that one is not necessary, given that TPS has not identified any witness with percipient knowledge to rebut Castro's emphatic denial of having e-signed two arbitration agreements, late at night, at TPS's offices. This matter can be adjudicated on the papers. (See *Garcia, supra*, 102 Cal.App.5th at pp. 54-55 [defendants forfeited evidentiary hearing by failing to request one before the motion hearing]; see also *Jones v. Solgen Construction, LLC* (2024) 99 Cal.App.5th 1178, 1204-1205 [no basis for remand to conduct evidentiary hearing when the dispute was relatively straightforward, rather than "extreme and wide ranging"].)

Finally, because the court has concluded that there was no valid arbitration agreement, the court declines to address Castro's additional arguments regarding unconscionability (which the court finds to be less compelling in any event).

The motion is DENIED.

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¹³ The evidentiary foundation for this argument is exceedingly thin, as Castro's regular work hours are not described anywhere in her declaration. They are only set forth in her opposition brief. Again, *attorney arguments are not evidence*. But because TPS does not raise any dispute regarding Castro's regular work hours in reply, the court will consider this fact.